

The Assam Criminal Law (Amendment) Act, 1970

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An Act to amend the Rules for the Administration of Justice in the North Cachar Hills Sub-division of the State of Assam
Preamble. - Whereas it is expedient to amend the rules for the Administration of Justice in the North Cachar Hills Sub-division of the State of Assam, hereinafter called the said rules, in the manner hereinafter appearing;
It is hereby enacted in the Twenty-first Year of the Republic of India as follows:

1.

Short title, extent and commencement.

(1)

This Act may be called the Assam Criminal Law (Amendment) Act, 1970.

(2)

It shall have the like extent as the said rules.

(3)

It shall come into force at once.

2.

Amendment of Rule 1.

- In Rule 1 of the said rules,-

(1)

the words "United District of Mikir and North Cachher Hills, Sub-divisional Officer" shall be deleted;

(2)

after Rule 1, the following shall be inserted as Rule 1-A, namely:

"The Governor may, when he thinks fit, appoint an Additional Deputy Commissioner, either generally, or for the trial of a particular case, or particular cases, civil or criminal, and may direct that such Additional Deputy Commissioner shall for the general or special purpose aforesaid, exercise all or any of the powers of the Deputy Commissioner."

2A.

Amendment of Rules 4, 6, 8 and 9.

- In Rules 4, 6, 8 and 9 of the said rules, for the words, "Sub-divisional Officer", the words "Deputy Commissioner" shall be substituted.

3.

Amendment of Rule 10.

- In Rule 10 of the said rules, for the words "Sub-divisional Officer or an Assistant to the Deputy Commissioner as may be specifically authorised by the Sub- divisional Officer in this behalf or Deputy Commissioner" occurring at the end, the words, "Deputy Commissioner or an Assistant to the Deputy Commissioner as may be specifically authorised" shall be substituted.

4.

Amendment of Rule 11.

- In Rule 11 of the said rules, for the words, "The Sub-divisional Officer, or to an Assistant to the Deputy Commissioner and from him to the Deputy Commissioner, whose orders are final but the Governor may at any time call for the proceedings of any officer subordinate to him and modify or reverse any order passed" the words, "an Assistant to the Deputy Commissioner and from him to the Deputy Commissioner whose orders are final but the Governor may at any time call for the proceedings of any officer subordinate to him and modify or reverse any order passed" shall be substituted.

5.

Amendment of Rule 12.

- In Rule 12 of the said rules, the words "Sub-divisional Officer or" shall be deleted.

6.

Amendment of Rule 13.

- In Rule 13 of the said rules, for the word "an" the word, "An" shall be substituted and the words, "the Sub-divisional Officer or" shall be deleted.

7.

Amendment of Rule 21.

- In Rule 21 of the said rules, for the words, "Sub-divisional Officer", the words, "Deputy Commissioner" shall be substituted.

8.

Amendment of Rule 22.

- In Rule 22 of the said rules, the words "Sub-divisional Officer, or" shall be deleted.

9.

Amendment of Rules 23, 24-B(2) and 31.

- In Rules 23, 24-B(2) and 31 of the said rules, the words, "The Sub-divisional Officer, or" shall be deleted.

10. Amendment of Rule 25.

- In Rule 25 of the said rules,-

(a)

The words "the Sub-divisional Officer" shall be deleted.

(b)

in Clause (b),-

(i)

the words, "and the Sub-divisional Officer" occurring in between the words "Deputy Commissioner" and "be" shall be deleted.

(ii)

the words, "Sub-divisional Officer or an" occurring in between the words "the" and "Assistant" shall be deleted.

(c)

in Clause (d), the words, "or Sub-divisional Officer" shall be deleted.

11.

Amendment of Rule 25-D.

- In Rule 25-D of the said rules, the words, "of the United Mikir and North Cachar Hills" shall be deleted.

12.

Amendment of Rule 26.

- In Rule 26 of the said rules, the words, "Sub-divisional Officer" shall be deleted.

13.

Amendment of Rule 32.

- In Rule 32 of the said rules, the words, "or Sub-divisional Officer" shall be deleted.

14.

Amendment of Rule 33.

- In Rule 33 of the said rules, the words, "Sub-divisional Officer shall be deleted.

15.

Amendment of Rule 34.

- In Rule 34 of the said rules, the words, "Sub-divisional Officer" shall be deleted.

16.

Amendment of Rule 35.

- In Rule 35 of the said rules, the words, "or Sub-divisional Officer" shall be deleted.

17.

Amendment of Rule 39.

- In Rule 39 of the said rules, in paragraph 2,

(i)

the words "Sub-divisional Officer or an" occurring in the second line shall be deleted;

(ii)

for the words, "Sub-divisional Officer" occurring in the tenth line, the words, "Assistant to the Deputy Commissioner" shall be substituted.

18.

Amendment of Rule 40.

- In Rule 40 of the said rules, the punctuation and words, "and Sub-divisional Officer" shall be deleted.

19.

Amendment of Rule 43.

- In Rule 43 of the said rules, the words "Sub-divisional officer or an" shall be deleted.

20.

Construing of reference as North Cachar Hills District.

- All references to North Cachar Hills Sub-division in the said rules shall be construed as references to North Cachar

Hills District.

21.

Repeal and savings.

(1)

The Assam Criminal Law (Amendment) Ordinance, 1970 (Assam Ordinance No. 2 of 1970) is hereby repealed.

(2)

Notwithstanding such repeal, anything done or any action taken under the Ordinance as repealed shall be deemed to have been done or taken under the provisions of the Act, as if this Act had commenced on the 2nd day of February, 1970 (date of promulgation of the Ordinance).

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